

The Hellenic Data Protection Authority convened at the invitation of the President via teleconference on 06/02/2024, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members Konstantinos Lamprinoudakis, Spyridon Vlachopoulos, Christos Kalloniatis, Aikaterini Iliadou, Grigorios Tsolias, and the alternate member Nikolaos Libos, as rapporteur in place of the regular member Charalampos Anthopoulos, who, although duly summoned in writing, did not attend due to an impediment. Present without voting rights were Eleni Maragkou, legal expert, Georgia Panagopoulou, and Aikaterini Chatzidiakou, IT experts, as assistants to the rapporteur, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

As part of a broader initiative by the European Data Protection Board (hereinafter, EDPB), the Hellenic Data Protection Authority (hereinafter, Authority), along with the majority of EDPB members, jointly undertakes the examination of a topic in a coordinated manner. For 2023, the EDPB decided to prioritize the topic "The definition and position of the Data Protection Officer." To this end, the EDPB developed a unified questionnaire regarding the definition and position of the Data Protection Officer (hereinafter, DPO), which the Authority adopted and sent to selected public entities.

The Authority, as a participating member in this action, has additionally chosen to exercise its investigative powers under Article 58 of the GDPR, in order to verify the definition and position of the DPO in the public sector in light of the statutory obligation for the appointment of a DPO (Articles 37-39 of the GDPR and Articles 6-8 of Law 4624/2019).

The Authority's coordinated action team, consisting of experts E. Maragkou, G. Panagopoulou, and A. Chatzidiakou, sent the questionnaire to 31 public entities on 03-05-2023. Among them was the Ministry of Climate Crisis and Civil Protection (hereinafter, data controller), to which the coordinated action team sent the questionnaire with the reference number G/EXE/1124/03-05-2023, with a deadline for submission via the EUsurvey link by 19-05-2023. The data controller did not respond to the aforementioned document. The Authority sent the questionnaire again to the data controller with the reference number G/EXE/1350/29-05-2023, in which the data controller was again invited to respond by 31-05-2023. The data controller did not respond once more. A search on the data controller's website revealed that there were no posted details of the DPO. Furthermore, based on the DPO registry maintained by the Authority, it was confirmed that the data controller had not made a declaration of DPO contact details as required under Article 37, paragraphs 1 and 7.

Subsequently, after the Authority examined the case file, it sent the reference number G/EXE/3018/28-11-2023 summons to the data controller in order to discuss the case before the Plenary of the Authority on Tuesday, December 19, 2023. During the session, the case was postponed at the request of the data controller for the session of 09-01-2024. Following the receipt of the summons to the Plenary of the Authority, the data controller sent the Authority the reference number G/EIS/9143/22-12-2023 memorandum, in which it transmitted the questionnaire confirming through its responses that it has not appointed a DPO despite the fact that the appointment is mandatory.

In the aforementioned session, which took place via teleconference, present on behalf of the data controller were A, Secretary General of Civil Protection of the Ministry of Climate Crisis and Civil Protection, and Panagioula Makri, Legal Advisor in the Minister's Office with ID ..., in order to

**\*\*Clarifications on the Case\*\***

Subsequently, and following a relevant request submitted during the session, the data controller sent the memorandum with reference number G/EIS/654/26-01-2024, in which he essentially reiterated the claims he had previously presented before the Authority. In his memorandum, he emphasizes that: a) a draft Presidential Decree has been sent, which includes organizational changes covering the field of personal data protection and is pending processing by the General Accounting Office of the State; b)

the delay in compliance is due to changes in the structure and composition of the ministry, specifically the addition of the General Secretariat for Assistance; c) the ministry was established in September 2021, to which services were transferred from the Ministry of Citizen Protection, while a transitional period was provided regarding the final assignment of employees and the transfer of funds until 31.12.2022; d) a contract has been concluded with an external consultant for the assignment of tasks to support compliance with the GDPR, and a supportive working group has been formed with representation from all critical departments of the ministry responsible for adhering to data protection procedures, and a Data Protection Officer (DPO) will also be appointed. Furthermore, with the aforementioned memorandum, the data controller sent the project contract (01/2024) with the contractor company named "ODYSSEY CONSULTANTS LTD – FOREIGN BRANCH" for the provision of consulting services for compliance with the GDPR. Finally, the data controller, through the memorandum, additionally sent the electronic communication between the head of the Administration and Support Directorate, which ultimately completed the relevant questionnaire (which was submitted to the Authority by the data controller with the aforementioned memorandum numbered G/EIΣ/9143/22-12-2023) and other representatives of the ministry, which took place on 06-06-2023, that is, after the deadline of 31-05-2023 that had been set for the submission of the questionnaire, at which point the link to the platform had been deliberately deactivated by the Authority as part of the inspection.

The Authority, after examining the elements of the file and what emerged from the hearing before it and the memoranda of the data controller, along with their supplementary documents, having heard the rapporteur and the clarifications from the assistant rapporteurs, who attended without voting rights, after thorough discussion, finds that new elements have emerged that must be examined and decides to postpone the issuance of a decision and to send a new summons to the data controller in order to discuss the case again in its entirety before the Plenary of the Authority.

**\*\*FOR THESE REASONS\*\***

THE AUTHORITY

Postpones the issuance of a decision for the case discussed before it in the session of 09-01-2024.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou